

22STCV19406 22STCV19406

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Division: Civil Law and Motion

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Case Number: 22STCV19406 Hearing Date: September 8, 2026 Dept: H

Hernandez v. Dean Enterprises, et al., Case No. 22STCV19406

ORDER ON MOTIONS IN LIMINE

Plaintiff's Motions in Limine

For the reasons stated herein, Plaintiff's motions in limine are summarily denied as untimely.

On June 23, 2026, the Court held a hearing on Plaintiff's ex parte application for an order continuing trial and trial-related dates. As reflected in the minute order, the Court granted the ex parte application and continued the Final Status Conference ("FSC") to September 8, 2026, at 10 a.m. and the Jury Trial to September 22, 2026, at 10 a.m. That order further directed the parties to "carefully review this order and file pretrial documents in accordance with this order." (Minute Order dated 6/23/2026.)

As to motions in limine, the order was clear that "[m]otions in limine will be heard at the time of the FSC," that motions in limine "shall be filed and served fourteen (14) calendar days before the FSC," and that "[a]ny opposition to the motions in limine shall be filed and served seven (7) calendar days before the FSC." (Id.)

Based on the Court's order, motions in limine were required to be filed and served by August 25, 2026. Plaintiff's motions in limine were filed on September 4, 2026, just one court day prior to the FSC. Accordingly, Plaintiff's motions in limine are summarily denied as untimely.

That said, as noted below, the Court obviously will follow controlling law and not permit improper argument, such as argument appealing to jurors' self-interest, jurors' personal circumstances, or the broader interests of the community; counsel shall ensure that all arguments are confined to the evidence presented and the specific parties, claims, and issues in this case.

Defendants' Motions in Limine

Defendants filed ten timely motions in limine on August 25, 2026. Oppositions were due September 1, 2026. As of this date, no opposition briefs have been filed. At the time of the FSC, the Court will hear from Plaintiff's counsel as to why the Court should not summarily grant Defendants' motions in limine based on Plaintiff's failure to file any timely opposition. The Court will also hear from Plaintiff's counsel as to which specific motions in limine (if any) Plaintiff opposes.

For the parties' guidance, the Court notes that it does not appear that any of the following issues are relevant to the claims in this trial: (a) unrelated habitability, construction issues, or complaints, (b) evidence of other lawsuits and claims against Defendants, (c) evidence of Defendants' wealth or other properties, and (d) evidence of Defendants' insurance.

The Court also advises the parties that its standard practice is to prohibit references to specific dollar amounts during voir dire, although counsel may ask qualitative questions regarding jurors' views on damages, such as whether any juror would have difficulty awarding "a substantial damages award" if warranted by the evidence. As to references to monetary amounts during opening statement, the Court generally does not permit reference to specific noneconomic damages figures, as such reference would be argumentative; however, counsel may refer to specific economic damages figures in opening statement to the extent those figures are expected to be supported by admissible evidence.

Finally, the Court obviously intends to follow controlling law, including *Kennemur v. State of California* (1982) 133 Cal. App. 3d 907, and will not permit improper argument, including argument appealing to jurors' self-interest, jurors' personal circumstances, or broader societal interests. Counsel shall ensure that all arguments are confined to the evidence presented and the specific parties, claims, and issues in this case.